

25CHCV02743 25CHCV02743

County: los-angeles

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Case Number: 25CHCV02743 Hearing Date: September 21, 2026 Dept: F43

Dept. F43

Hearing Date: 09-21-26

Case # 25CHCV02743, The

Guarantee Company of North America USA v. Arsenian, et al.

Trial Date: 03-19-29

MOTION TO DETERMINE

APPLICABLE STATUTORY BOND PERIODS, APPLICABLE PENAL SUMS, CLAIMANT ELIGIBILITY,
AND THE EXTENT OF THE SURETY'S LIABILITY PRIOR TO INTERPLEADER DEPOSIT AND
DISCHARGE

MOVING PARTY:

Defendant/Claimant Jack Torossian, in pro per

RESPONDING PARTIES: Plaintiff The Guarantee Company of North
American USA; Defendant Adela Flores

RELIEF REQUESTED

Order denying or deferring plaintiff's
request for discharge.

RULING: Motion is denied.

SUMMARY OF ACTION

On August 1, 2025, plaintiff The Guarantee Company of North America USA (Guarantee) filed a interpleader complaint against several defendants, including Jack Torossian and Adela Flores, seeking to restrain all parties to any action on the Sunnova Bond from instituting or further prosecuting any other proceeding in California affecting the rights and obligations as between the parties to the interpleader until further order of the court, pursuant to Code Civ. Proc., § 386, subdivision (f).

Guarantee issued a bond on behalf of Sunnova Energy Corporation, as principal: Contractor's License Bond No. 76123366 (Sunnova Bond).

The Sunnova Bond was in effect from February 19, 2016 until it was cancelled on or about May 14, 2025.

Sunnova filed for Chapter 11 bankruptcy on June 8, 2025, which remains pending in the Southern District of Texas (Case No. 25-90159). Guarantee executed and delivered the Sunnova Bond in the penalty amount of \$12,500 for the benefit of California or any claimants. The amount of the bond has increased, and as of January 1, 2023, the penal sum is \$25,000. Multiple claims have been made against the Sunnova Bond, including a \$15,000 claim by defendant Adela Flores, filed in San Bernardino Superior Court Cas No. CIVSB2321164, for damages caused by Sunnova Energy in performing construction work on her home.

Guarantee also issued a Contractor's License Bond of Qualifying Individual No. 76123374 (Craig Bond) on behalf of Patrick Daniel Craig, as bond principal, in the penalty amount of \$12,500 for the benefit of California and any claimants.

The Craig Bond was in effect from February 19, 2016 until it was cancelled on May 14, 2025. Guarantee executed and delivered the Craig Bond in the penalty amount of \$12,500 for the benefit of California or any claimants.

As of January 1, 2023, the penalty sum is \$25,000. Multiple claims against Surety relating to the Sunnova Bond have been made or may be made by persons or entities that may give rise to damages exceeding the bond penalty, including a claim by Jack Torossian for more than \$25,000 in damages caused by Sunnova in performing construction work on the home of defendant Marsha Swinford.

In the event that entire penalty amount of the bonds is determined to be payable to one or more claimants, Guarantee asks that the bonds be cancelled and exonerated and that Guarantee be released from

liability relating to the bonds.

On July 28, 2026, defendant Jack Torossian filed a document titled "Motion to Determine Applicable Statutory Bond Periods, Applicable Penal Sums, Claimant Eligibility, and The Extent of the Surety's Liability Prior to Interpleader Deposit and Discharge."

Mr. Torossian brings his motion pursuant to statutory provisions: Bus. & Prof. Code, §§ 7071.5, 7071.6, 7071.8, 7071.9, 7071.10, and 7071.11; Code Civ. Proc., §§ 386, 995.420, and 996.470; and SB607. Defendant Torossian is self-represented and filed an answer on October 17, 2025.

On September 4, 2026, defendant Adela Flores filed an opposition, contending Mr. Torossian improperly seeks summary determination of the bond funds distribution without any legal and factual support, despite the adjudication of these issues being set for trial on March 19, 2029. According to Ms. Flores, the relief sought is unclear, making it difficult for Ms. Flores to ascertain what Mr. Torossian's motion seeks, considering the court docket does not indicate that Guarantee has moved to deposit bond funds or to be discharged. Next, Mr. Torossian's motion fails to comply with the requirements of summary adjudication pursuant to Code of Civil Procedure section 437c and California Rule of Court 3.1350. Finally, Mr. Torossian's distribution of any bond funds should be reduced at trial for expending the parties' time, fees, and costs in having to oppose his meritless and uncertain motion.

On September 8, 2026, Guarantee filed an opposition, contending California procedure does not permit any motion to determine selective legal issues with the exception of Code of Civil Procedure section 437c, subdivision (f)(1). Once all known claimants have been added to this action and served, Guarantee will move to deposit the full amounts of the two license bonds, for attorney fees and costs, and to discharge its liability and cancel and exonerate the bonds.

No reply was filed.

ANALYSIS

Mr. Torossian asks the court to make a determination on the following issues:

I. Whether SB607

applies prospectively or otherwise affects claims arising under contracts executed before January 1, 2023.

2. What legally significant event determines the applicable statutory bond period.

3. Which statutory bond period and penal sum governs each claimant.

4. Whether claimants whose contracts predate January 1, 2023 may participate in the increased statutory penal sums enacted by SB 607.

5. Whether claimants whose contracts postdate January 1, 2023 may assert claims against earlier statutory bond periods.

6. Whether GCNA's proposed deposit fully satisfies its statutory obligations.

7. Whether GCNA should be discharged before these threshold legal issues are resolved.

8. Whether GCNA should produce the original bonds, riders, endorsements, continuation certificates, renewals, and documents reflecting the effective dates of each statutory penal sum.

(Mot. at pp. 5:24-6:10.)

Mr. Torossian does not cite a valid statutory basis for summary adjudication or determination of the above issues. Because Mr. Torossian's motion sounds in a motion for summary adjudication of specific factual and legal issues in this matter, the court analyzes it as such.

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative

defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication must include the moving party's notice of motion, separate statement of undisputed material facts, a memorandum of points and authorities, supporting evidence, and any requests for judicial notice. (Cal. Rules of Court, rule 3.1350(c).)

Mr. Torossian's motion fails to include a separate statement or supporting evidence beyond his declaration, which would allow the court to decide all requested legal issues.

(See Declaration of Jack Torossian.)

Moreover, Mr. Torossian's motion is procedurally defective because it was filed on July 28, 2026, 54 calendar days before the hearing date. (Code Civ. Proc., § 437c, subd. (a)(2).) Finally, Mr. Torossian assumes conduct

which has yet to occur, including that Guarantee has proposed a deposit that fully satisfies its statutory obligations.

However, Guarantee only alleges this in the Complaint and has yet to identify all claimants.

Nor do any of the legal authorities cited by Mr.

Torossian serve as a legal basis for summary adjudication of the issues in Mr.

Torossian's motion. (Bus. & Prof.

Code, §§ 7071.5, 7071.6, 7071.8, 7071.9, 7071.10, and 7071.11 [liability of an surety of contractor's bond]; Code Civ. Proc., §§ 386, 995.420, and 996.470 [interpleader actions concerning competing claims and issues the court may try first]; and SB 607 [law intended to streamline environmentally beneficial projects].)

Therefore, the court denies Mr. Jack Torossian's motion.

CONCLUSION and ORDER

Motion is denied.

Defendant/Claimant Jack Torossian to give notice.